



Office of Public Affairs
U.S. Department of Justice



United States Intervenes and Sues ProMedica Health System, Inc. and Its Affiliates for Providing Grossly Substandard Nursing Home Services

Tuesday, September 2, 2025

For Immediate Release

Office of Public Affairs

The United States has intervened and filed a complaint in the U.S. District Court for the Eastern District of Pennsylvania under the False Claims Act (FCA) against ProMedica Health System, Inc. (ProMedica) and various affiliated entities including HCR ManorCare Inc. and four nursing homes located in Pennsylvania, Ohio, South Carolina, and Virginia (the defendants). ProMedica is a nonprofit corporation that is headquartered in Toledo, Ohio. From 2018 to 2023, it owned and controlled the following four nursing homes: ProMedica Skilled Nursing and Rehabilitation - Pottstown (Pennsylvania), ProMedica Skilled Nursing and Rehabilitation - Riverview (Ohio), ProMedica Skilled Nursing, Rehabilitation - Greenville East (South Carolina), and ProMedica Skilled Nursing and Rehabilitation - Imperial (Virginia).

In its complaint in intervention, the United States alleged that the four nursing homes provided non-existent, grossly substandard skilled nursing facility care or services that otherwise failed to meet the required standards of care under the Nursing Home Reform Act. The United States alleged that, from 2017 to 2023, the defendants failed to develop or follow individualized care plans for their residents. Specifically, in many cases, the facilities failed to provide adequate wound care to prevent pressure ulcers, failed to maintain residents' hygiene and to provide showers as required, and failed to provide residents with appropriate assistance with feeding, which led to severe weight loss in many cases. To conceal their provision of grossly substandard care, in some cases, defendants falsely documented in resident medical records that care and services had been provided to residents when it had not been.

"The Justice Department is committed to protecting the most vulnerable members of our society, including elderly and infirm individuals who depend on nursing homes for safe and dignified skilled nursing care," said Assistant Attorney General Brett A. Shumate of the Justice Department's Civil Division. "Grossly substandard care places nursing home residents at serious risk of harm and this suit

sends a clear message that we will pursue health care providers who fail to meet their legal obligations to provide required care and who betray the trust of the residents they are meant to serve."

"An increasing number of older adults and persons with disabilities are residing in long-term care facilities. These residents are often particularly vulnerable to inadequate assessment and treatment of their needs," said U.S. Attorney David Metcalf for the Eastern District of Pennsylvania. "Beginning almost 30 years ago, the Civil Division of the U.S. Attorney's Office for the Eastern District of Pennsylvania filed some of the first False Claims Act complaints and reached some of the first settlements in the United States to focus on quality of care in the nursing home environment. Today's complaint again serves notice to the nursing home industry that a failure to provide adequate nursing home care will not be tolerated. Public funds expended for nursing home residents must result in appropriate care, which is what the government pays for, and the law requires."

The complaint in intervention is the result of a coordinated effort by the Civil Division's Commercial Litigation Branch, Fraud Section, and the U.S. Attorney's Office for the Eastern District of Pennsylvania, with assistance from the U.S. Department of Health and Human Services' Office of Inspector General. This matter is being handled by Fraud Section attorneys Susan C. Lynch, Robbin O. Lee, and Samuel P. Robins, and Assistant U.S. Attorneys David Degnan and Gerald B. Sullivan for the Eastern District of Pennsylvania.

The case is captioned *United States, et al., ex. rel. Compton v. HCR ManorCare, Inc., et al.*, No. 16-cv-0851 (E.D. Pa.).

The claims asserted in the complaint are allegations only. There has been no determination of liability.

Updated September 2, 2025

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FALSE CLAIMS ACT

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